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# NON-DISPARAGEMENT AGREEMENT

**Date**: February 4, 2025

**Parties**:

- **Steven Rudolph** ("Rudolph")
  1412 Palisade Avenue, 12N
- **Fort Lee, NJ 07024**

- **Multiple Natures International, LLC** ("MNI")
  85 Newark-Pompton Turnpike, P.O. Box 75, Riverdale, NJ 07457-0075
- **Rytis Jurkenas** ("Jurkenas")
  Seinu St. 22, 44144 Kaunas, Lithuania
- **EduPerfectus** and **Kalba.lt**, entities wholly owned by Jurkenas.

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## RECITALS

WHEREAS, the parties have entered into a settlement agreement resolving all disputes related to MNI;

WHEREAS, the parties wish to protect their reputations, businesses, and professional relationships by agreeing to refrain from disparaging each other;

NOW, THEREFORE, in consideration of the mutual covenants herein, the parties agree as follows:

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## AGREEMENT

### 1. Definition of Disparagement

For the purposes of this agreement, "disparagement" shall include any statement, whether written, oral, electronic, or otherwise, that is false, misleading, derogatory, defamatory, or reasonably expected to harm the reputation, goodwill, or professional or personal interests of any party or their affiliates.

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### 2. Non-Disparagement Obligations

**2.1 Jurkenas' Obligations**:
Jurkenas, on behalf of himself, EduPerfectus, Kalba.lt, and any representatives, agents, or affiliates acting on his behalf, agrees:

- Not to make, publish, or communicate in any form—whether oral, written, digital, or otherwise—any disparaging, defamatory, or false statements about Rudolph, MNI, or any of their agents, employees, contractors, affiliates, or associates.
- Not to make any statements or allegations that could harm Rudolph's or MNI's reputation, business interests, or personal or professional relationships.

**2.2 Rudolph's Obligations**:
Rudolph, on behalf of himself and MNI, agrees:

- Not to make, publish, or communicate in any form—whether oral, written, digital, or otherwise—any disparaging, defamatory, or false statements about Jurkenas, EduPerfectus, or Kalba.lt.

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**3. Scope of Prohibited Conduct**

The prohibition on disparagement applies to, but is not limited to:

- Direct statements made to third parties, including clients, business partners, vendors, or colleagues.
- Indirect statements, including those made on social media, blogs, reviews, or other public or private platforms.
- Soliciting, encouraging, or directing others to make disparaging statements.
- Anonymous or pseudonymous statements made in any forum, including online platforms.

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**4. Remedies for Breach**

**4.1 Injunctive Relief**:
The non-breaching party shall have the right to seek immediate injunctive relief to prevent further violations.

**4.2 Damages**:
The breaching party shall be liable for any damages, including but not limited to reputational harm, lost business, legal fees, and costs incurred as a result of the breach.

**4.3 Liquidated Damages**:
Each breach of this agreement shall result in liquidated damages of $50,000. For each subsequent breach, the liquidated damages amount shall increase by $10,000, up to a maximum of $100,000 per breach.

**4.4 Online Disparagement**:
If disparaging statements are made online or in a public forum, the breaching party shall promptly remove such content upon notice and, if requested by the non-breaching party, publish a written retraction or apology in a form approved by the non-breaching party.

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**5. Confidentiality**

The terms of this agreement shall remain confidential. Neither party shall disclose its existence or terms, except as required by law or as necessary for legal, financial, or tax advice.

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**6. No Admission of Wrongdoing**

This agreement does not constitute an admission of wrongdoing, liability, or fault by any party.

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**7. Affiliated Parties and Agents**

Each party agrees to ensure that its agents, representatives, employees, affiliates, and family members comply with the terms of this agreement and shall be responsible for any disparaging statements made on their behalf.

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**8. Cooperation in Investigations**

If a party becomes aware of disparaging statements that may violate this agreement, the other party agrees to cooperate in good faith to investigate and identify the source of the statements.

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**9. Survival Clause**

The obligations under this agreement shall survive the termination of any related agreements or settlement and remain enforceable indefinitely.

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**10. Governing Law and Venue**

The Parties agree that any disputes arising from or relating to this Agreement shall be exclusively governed by and construed in accordance with the laws of the State of New Jersey for suits brought against Steven Rudolph and MNI, which suits must be brought in the New Jersey Superior Court, Morris County vicinage, without regard for the laws in the suing parties jurisdiction; for disputes against Rytis Jurkenas or the Jurkenas companies, Lithuanian law shall be applied, without regard for the laws in the suing party's jurisdiction, which suits must be brought in Kaunas City Court.

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**11. Entire Agreement**

This agreement constitutes the entire understanding between the parties regarding non-disparagement and supersedes any prior agreements or understandings.

12. **Validity.** This Agreement shall be valid only if the amount of 125,000 USD is deposited into Rytis Jurkenas' US dollars' account IBAN LT14 3250 0463 5525 1635, BIC / SWIFT codeREVOLT21, Bank Name and Address, Revolut Bank UAB in accordance with the terms of the Settlement agreement of this date between and among the parties.

**SIGNATURES**

**Rytis Jurkenas**

By: _____

Date: February 4, 2025

**Steven Rudolph**

DocuSigned by:

By: _____ 2/5/2025

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Date: February 4, 2025

**Multiple Natures International, LLC**

DocuSigned by:

By: _____ 2/5/2025

F0B475065FE19490

Date: February 4, 2025